
Process steps

Title:	Completing records requests from federal immigration authorities
Related to:	ODHSOHA 010-031
Effective date:	05/01/2025

Purpose

This document provides a process for agency staff to use in the event staff receive requests, either written or in person, from a federal immigration authority for the purpose of immigration enforcement.

Federal immigration authorities include:

1. United States (US) Department of Homeland Security.
2. US Immigration and Customs Enforcement.
3. US Citizenship and Immigration Services.
4. US Customs and Border Protection.
5. Other federal immigration agencies or officials.
6. Successor agencies to those listed.
7. Entities that have delegated authority to detect, investigate or enforce violations of immigration law.

Immigration enforcement means an activity that has as its purpose the apprehension or identification of an individual to:

1. Subject the person to civil immigration arrest or detention, removal or deportation, removal or deportation proceedings,
2. Criminally prosecute the person for offenses related to federal law regarding immigration status.

Process steps

1. If ODHS staff receive a request for records or information related to the citizenship, immigration status, or country of birth of a client, employee, volunteer, or any Oregonian, staff:
 - a. Remains calm and professional.
 - b. Asks for and writes down the full name and agency of the person making the request.
 - c. Asks for and writes down information about the person, including badge number and a business card, if possible.
 - d. Asks to make copies of any presented documents such as subpoenas, warrants, or court orders.
 - e. Asks the purpose of the request.
 - f. Immediately reports to the staff person's supervisor or manager.

2. Requests may be verbal, written, subpoena, court order or warrant.
3. After notifying their manager or supervisor, the staff person who received the request, or the manager or supervisor contacts the ODHS Office of Resilience and Emergency Management (OREM) Staff Duty Officer by calling 503-373-2366. OREM staff are available 24 hours per day, seven days per week.
4. Documents related to the request should be emailed to OREM.Operations@odhsoha.oregon.gov.
5. OREM reviews the information and contacts the ODHS Legal Unit.
6. The ODHS Legal Unit consults the Oregon Department of Justice to ensure the appropriate response
7. The ODHS Legal Unit provides staff with additional instructions, if necessary.
8. The ODHS Legal Unit responds to the request, as appropriate.
9. The OHDS Legal Unit completes the [Sanctuary Violation Reporting Form](#).

References

[ORS 181A.823](#)

Forms referenced

[OHA Public Records Requests](#)

[ODHS Records Requests](#)

Related policies

[ODHSOHA 010-031 Collecting, Maintaining and Sharing Citizenship or Immigration Status or Country of Birth Information](#)

[ODHSOHA 100-001 Privacy Policy](#)

[ODHSOHA 100-003 HIPAA: Accessing Individual Records](#)

[ODHSOHA 100-005 HIPAA: Restricting Access to Individual Information](#)

[ODHSOHA 100-008 HIPAA: Minimum Necessary Requirements](#)

[ODHS 010-010 Public Records Requests, Fees and Waivers](#)

[OHA 010-010 Public Records Requests and Fees](#)

[Records Retention and Management Policy](#)

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Keywords

Birth, citizenship, country, immigration, sanctuary

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